

**ARTICLES OF ASSOCIATION
OF
SUN TURTLE INTERNET LIMITED**

Part 1 — Interpretation and Limitation of Liability

1. Defined terms

1. In these articles, unless the context requires otherwise—

"address" includes a number or address used for sending or receiving documents or information by electronic means;

"articles" means the company's articles of association;

"bankruptcy" includes individual insolvency proceedings in a jurisdiction other than England and Wales or Northern Ireland which have an effect similar to that of bankruptcy;

"chairman" has the meaning given in article 15 and "chairman of the meeting" has the meaning given in article 27;

"clear days" in relation to the period of a notice means the period excluding the day when the notice is given or deemed to be given and the day for which it is given or on which it is to take effect;

"Companies Acts" means the Companies Acts (as defined in section 2 of the Companies Act 2006), in so far as they apply to the company;

"director" means a director of the company, and includes any person occupying the position of director, by whatever name called;

"document" includes, unless otherwise specified, any document sent or supplied in electronic form;

"electronic form" has the meaning given in section 1168 of the Companies Act 2006;

"executed" includes any mode of execution;

"member" has the meaning given in section 112 of the Companies Act 2006;

"office" means the registered office of the company;

"ordinary resolution" has the meaning given in section 282 of the Companies Act 2006;

"participate" in relation to a directors' meeting has the meaning given in article 12;

"proxy notice" has the meaning given in article 34;

"the seal" means the common seal of the company if it has one;

"secretary" means the secretary of the company or any other person appointed to perform the duties of the secretary, including a joint, assistant or deputy secretary;

"special resolution" has the meaning given in section 283 of the Companies Act 2006;

"subsidiary" has the meaning given in section 1159 of the Companies Act 2006;

"writing" means the representation or reproduction of words, symbols or other information in a visible form by any method or combination of methods, whether sent or supplied in electronic form or otherwise.

Unless the context otherwise requires, other words or expressions contained in these articles bear the same meaning as in the Companies Act 2006 as in force on the date when these articles become binding on the company.

2. Liability of members

2. The liability of each member is limited to £1, being the amount that each member undertakes to contribute to the assets of the company in the event of its being wound up while being a member or within one year after ceasing to be a member, for—

- (a) payment of the company's debts and liabilities contracted before ceasing to be a member;
- (b) payment of the costs, charges and expenses of winding up; and
- (c) adjustment of the rights of the contributories among themselves.

Part 2 — Objects; Restrictions

3. Objects

3. The objects for which the company is established are to conduct business in a sustainable and socially conscious manner, especially the provision of connectivity and internet services, and in particular—

- (a) the provision of broadband, internet access, and related digital connectivity services to consumers and small businesses;
- (b) the promotion of digital inclusion and equitable access to connectivity;
- (c) the adoption of environmentally sustainable practices in the delivery of all services and operations;
- (d) the conduct of business in a way that prioritises long-term social and environmental benefit alongside commercial viability; and
- (e) the development and promotion of open-source software tools for public use, including tools for the operation, management, and delivery of internet and connectivity services; and
- (f) such other activities as may be ancillary or conducive to the attainment of the foregoing objects.

4. Entrenched provisions

4. This article 3 shall not be modified, varied or deleted except by a special resolution passed by the company in general meeting at which more than fifty per cent. of the members for the time being of the company are present in person or by proxy.

Part 3 — Directors

Directors' powers and responsibilities

5. Directors' general authority

5. Subject to the articles, the directors are responsible for the management of the company's business, for which purpose they may exercise all the powers of the company.

6. Members' reserve power

- 6. (1) The members may, by special resolution, direct the directors to take, or refrain from taking, specified action.
- (2) No such special resolution invalidates anything which the directors have done before the passing of the resolution.

7. Directors may delegate

7. (1) Subject to the articles, the directors may delegate any of the powers which are conferred on them under the articles—

- (a) to such person or committee;

(b) by such means (including by power of attorney);

(c) to such an extent;

(d) in relation to such matters or territories; and

(e) on such terms and conditions;

as they think fit.

(2) If the directors so specify, any such delegation may authorise further delegation of the directors' powers by any person to whom they are delegated.

(3) The directors may revoke any delegation in whole or part, or alter its terms and conditions.

8. Committees

8. (1) Committees to which the directors delegate any of their powers must follow procedures which are based as far as they are applicable on those provisions of the articles which govern the taking of decisions by directors.

(2) The directors may make rules of procedure for all or any committees, which prevail over rules derived from the articles if they are not consistent with them.

Decision-making by directors

9. Directors to take decisions collectively

9. (1) The general rule about decision-making by directors is that any decision of the directors must be either a majority decision at a meeting or a decision taken in accordance with article 10.

(2) If the company only has one director, and no provision of the articles requires it to have more than one director, the general rule does not apply, and the director may take decisions without regard to any of the provisions of the articles relating to directors' decision-making.

10. Unanimous decisions

10. (1) A decision of the directors is taken in accordance with this article when all eligible directors indicate to each other by any means that they share a common view on a matter.

(2) Such a decision may take the form of a resolution in writing, copies of which have been signed by each eligible director or to which each eligible director has otherwise indicated agreement in writing.

(3) References in this article to eligible directors are to directors who would have been entitled to vote on the matter had it been proposed as a resolution at a directors' meeting.

(4) A decision may not be taken in accordance with this article if the eligible directors would not have formed a quorum at such a meeting.

11. Calling a directors' meeting

11. (1) Any director may call a directors' meeting by giving notice of the meeting to the directors or by authorising the company secretary (if any) to give such notice.

(2) Notice of any directors' meeting must indicate—

(a) its proposed date and time;

(b) where it is to take place; and

(c) if it is anticipated that directors participating in the meeting will not be in the same place, how it is proposed that they should communicate with each other during the meeting.

(3) Notice of a directors' meeting must be given to each director, but need not be in writing.

(4) Notice of a directors' meeting need not be given to directors who waive their entitlement to notice of that meeting, by giving notice to that effect to the company not more than 7 days after the date on which the meeting is held. Where such notice is given after the meeting has been held, that does not affect the validity of the meeting, or of any business conducted at it.

12. Participation in directors' meetings

12. (1) Subject to the articles, directors participate in a directors' meeting, or part of a directors' meeting, when—

(a) the meeting has been called and takes place in accordance with the articles, and

(b) they can each communicate to the others any information or opinions they have on any particular item of the business of the meeting.

(2) In determining whether directors are participating in a directors' meeting, it is irrelevant where any director is or how they communicate with each other.

(3) If all the directors participating in a meeting are not in the same place, they may decide that the meeting is to be treated as taking place wherever any of them is.

13. Quorum for directors' meetings

13. (1) At a directors' meeting, unless a quorum is participating, no proposal is to be voted on, except a proposal to call another meeting.

(2) The quorum for directors' meetings may be fixed from time to time by a decision of the directors, but unless otherwise fixed it is one.

(3) If the total number of directors for the time being is less than the quorum required, the directors must not take any decision other than a decision—

(a) to appoint further directors, or

(b) to call a general meeting so as to enable the members to appoint further directors.

14. Directors' conflicts of interest

14. (1) If a proposed decision of the directors is concerned with an actual or proposed transaction or arrangement with the company in which a director is interested, that director is not to be counted as participating in the decision-making process for quorum or voting purposes.

(2) But if paragraph (3) applies, a director who is interested in an actual or proposed transaction or arrangement with the company is to be counted as participating in the decision-making process for quorum and voting purposes.

(3) This paragraph applies when—

(a) the company by ordinary resolution disapplies the provision of the articles which would otherwise prevent a director from being counted as participating in the decision-making process;

(b) the director's interest cannot reasonably be regarded as likely to give rise to a conflict of interest; or

(c) the director's conflict of interest arises from a permitted cause.

(4) For the purposes of this article, the following are permitted causes—

(a) a guarantee given, or to be given, by or to a director in respect of an obligation incurred by or on behalf of the company or any of its subsidiaries;

(b) subscription, or an agreement to subscribe, for securities of the company or any of its subsidiaries, or to underwrite, sub-underwrite, or guarantee subscription for any such securities; and

(c) arrangements pursuant to which benefits are made available to employees and directors or former employees and

directors of the company or any of its subsidiaries which do not provide special benefits for directors or former directors.

(5) If a question arises at a directors' meeting as to the right of a director to participate in the meeting for voting or quorum purposes, the question may, before the conclusion of the meeting, be referred to the chairman whose ruling in relation to any director other than the chairman is to be final and conclusive.

(6) If any question as to the right to participate should arise in respect of the chairman, the question is to be decided by a decision of the directors at that meeting, for which purpose the chairman is not to be counted as participating for voting or quorum purposes.

15. Chairing of directors' meetings

15. (1) The directors may appoint a director to chair their meetings (the "chairman"). The directors may terminate the chairman's appointment at any time.

(2) If the chairman is not participating in a directors' meeting within ten minutes of the time at which it was to start, the participating directors must appoint one of themselves to chair it.

(3) If the numbers of votes for and against a proposal are equal, the chairman or other director chairing the meeting has a casting vote, unless the chairman or other director is not to be counted as participating for quorum or voting purposes.

16. Directors' records

16. The directors must ensure that the company keeps a record, in writing, for at least 10 years from the date of the decision recorded, of every unanimous or majority decision taken by the directors. Records may be kept in electronic form.

17. Directors' further rules

17. Subject to the articles, the directors may make any rule which they think fit about how they take decisions, and about how such rules are to be recorded or communicated to directors.

Appointment of directors

18. Methods of appointing directors

18. (1) Any person who is willing to act as a director, and is permitted by law to do so, may be appointed to be a director—

(a) by ordinary resolution, or

(b) by a decision of the directors.

(2) In any case where, as a result of death, the company has no members and no directors, the personal representatives of the last member to have died have the right, by notice in writing, to appoint a person to be a director.

(3) Where two or more members die in circumstances rendering it uncertain who was the last to die, a younger member is deemed to have survived an older member.

19. Termination of director's appointment

19. A person ceases to be a director as soon as—

(a) that person ceases to be a director by virtue of any provision of the Companies Act 2006 or is prohibited from being a director by law;

(b) a bankruptcy order is made against that person;

(c) a composition is made with that person's creditors generally in satisfaction of that person's debts;

(d) notification is received by the company from the director that the director is resigning from office, and such resignation has taken effect in accordance with its terms.

20. Directors' remuneration

20. (1) Directors may undertake any services for the company that the directors decide.

(2) Directors are entitled to such remuneration as the directors determine—

(a) for their services to the company as directors, and

(b) for any other service which they undertake for the company.

(3) Subject to the articles, a director's remuneration may—

(a) take any form, and

(b) include any arrangements in connection with the payment of a pension, allowance, or gratuity, or any death, sickness or disability benefits, to or in respect of that director.

(4) Unless the directors decide otherwise, directors' remuneration accrues from day to day.

(5) Unless the directors decide otherwise, directors are not accountable to the company for any remuneration which they receive as directors or other officers or employees of the company's subsidiaries or of any other body corporate in which the company is interested.

21. Directors' expenses

21. The company may pay any reasonable expenses which the directors properly incur in connection with their attendance at—

(a) meetings of directors or committees of directors;

(b) general meetings; or

(c) separate meetings of the holders of any debentures of the company;

or otherwise in connection with the exercise of their powers and the discharge of their responsibilities in relation to the company.

Part 4 — Members

Becoming and ceasing to be a member

22. Applications for membership

22. No person shall become a member of the company unless—

(a) that person has completed an application for membership in a form approved by the directors, and

(b) the directors have approved the application.

23. Termination of membership

23. (1) A member may withdraw from membership of the company by giving 7 days' notice to the company in writing.

(2) Membership is not transferable.

(3) A person's membership terminates when that person dies or ceases to exist.

Organisation of general meetings

24. Calling general meetings

24. The directors may call general meetings at any time.

25. Notice of general meetings

25. (1) A meeting called for the passing of a special resolution shall be called by at least 21 clear days' notice. All other general meetings shall be called by at least 14 clear days' notice.

(2) The notice shall specify the time and place of the meeting and the general nature of the business to be transacted.

(3) Notice shall be given to every member and to the directors and auditors (if any).

(4) The accidental omission to give notice to, or non-receipt of notice by, any person entitled to receive notice shall not invalidate the proceedings.

26. Quorum for general meetings

26. (1) No business shall be transacted at any general meeting unless a quorum is present. Two persons entitled to vote, each being a member or a duly authorised representative, or one-third of the total number of members for the time being, whichever is less, shall constitute a quorum.

(2) If a quorum is not present within half an hour from the time appointed for the meeting, the meeting shall stand adjourned to the same day in the next week at the same time and place, or to such other time and place as the directors may determine.

27. Chairing of general meetings

27. (1) If the directors have appointed a chairman, the chairman shall chair general meetings if present and willing.

(2) If no chairman has been appointed or is available, the directors present shall appoint one of their number to chair. If no director is present or willing, the members present shall appoint one of their number.

(3) The person chairing a meeting under this article is the "chairman of the meeting".

28. Attendance and speaking by non-members

28. (1) Directors may attend and speak at general meetings, whether or not they are members.

(2) The chairman of the meeting may permit other persons who are not members to attend and speak.

29. Adjournment

29. (1) The chairman of the meeting may, with the consent of a meeting at which a quorum is present, adjourn the meeting. The chairman must adjourn if directed to do so by the meeting.

(2) No business shall be transacted at an adjourned meeting other than business which might properly have been transacted at the original meeting.

(3) If the adjourned meeting is to take place more than 14 days later, at least 7 clear days' notice shall be given.

Voting at general meetings

30. Voting: general

30. (1) A resolution put to the vote shall be decided on a show of hands unless a poll is duly demanded.

(2) Every member shall have one vote.

(3) No member shall be entitled to vote if any moneys payable by them to the company remain unpaid.

(4) In the case of an equality of votes, the chairman of the meeting shall have a casting vote.

31. Poll votes

31. (1) A poll may be demanded by—

- (a) the chairman of the meeting;
- (b) the directors;
- (c) two or more persons having the right to vote; or
- (d) a person or persons representing not less than one-tenth of the total voting rights.

(2) A demand for a poll may be withdrawn with the consent of the chairman.

(3) Polls shall be taken immediately and in such manner as the chairman of the meeting directs.

Proxies

32. Content of proxy notices

32. (1) A member may appoint a proxy by notice in writing (a "proxy notice") which—

- (a) states the member's name and address;
- (b) identifies the proxy and the meeting concerned;
- (c) is signed by or on behalf of the member; and
- (d) is delivered to the company in accordance with any instructions in the meeting notice.

(2) The company may require proxy notices in a particular form.

(3) Unless a proxy notice indicates otherwise, it shall be treated as allowing the proxy discretion on ancillary or procedural resolutions and applying to any adjournment of the meeting.

33. Delivery and revocation of proxy notices

33. (1) A proxy appointment may be revoked by written notice delivered to the company before the start of the meeting or adjourned meeting to which it relates.

(2) If a proxy notice is not signed by the member, it must be accompanied by written evidence of authority.

34. Amendments to resolutions

34. (1) An ordinary resolution may be amended by ordinary resolution if written notice of the amendment is given at least 48 hours before the meeting (or such later time as the chairman may permit) and the amendment does not materially alter the scope of the resolution.

(2) A special resolution may be amended to correct grammatical or non-substantive errors.

Part 5 — Administrative Arrangements

35. Means of communication

35. (1) Notices and documents under these articles may be sent or supplied in any way permitted by the Companies Act 2006, including electronic means.

(2) The company may send any notice to a member either personally or by sending it by post or electronic means to the member's registered address.

(3) A member present at any meeting shall be deemed to have received notice of the meeting.

(4) Proof that a notice was properly addressed and sent shall be conclusive evidence of delivery. A notice sent by post shall be deemed to be given 48 hours after posting.

(5) A director may agree with the company that notices sent in a particular way are deemed received within a specified time.

36. The seal

36. (1) Any common seal may only be used by the authority of the directors.

(2) The directors may decide how and in what form any common seal is to be used.

(3) If the seal is affixed to a document, the document must also be signed by at least one director or the secretary, in the presence of a witness who attests the signature.

37. Records

37. Except as provided by law, or authorised by the directors or an ordinary resolution, no person is entitled to inspect the company's accounting or other records merely by virtue of being a member.

38. Accounts and reports

38. The directors shall comply with their obligations under the Companies Act 2006 regarding the preparation of accounts, annual reports, and their filing with Companies House and any other relevant regulatory bodies.

39. Notices

39. A notice calling a directors' meeting need not be in writing. All other notices shall be in writing except where the articles provide otherwise.

Directors' indemnity and insurance

40. Indemnity

40. (1) A relevant director may be indemnified out of the company's assets against any liability incurred in connection with any negligence, default, breach of duty, or breach of trust in relation to the company or an associated company, and any other liability incurred as an officer.

(2) This article does not authorise any indemnity prohibited or rendered void by law.

(3) In this article, companies are associated if one is a subsidiary of the other or both are subsidiaries of the same body corporate. A "relevant director" means any director or former director of the company or an associated company.

41. Insurance

41. (1) The directors may purchase and maintain insurance, at the company's expense, for the benefit of any relevant director in respect of any relevant loss.

(2) In this article, a "relevant director" means any director or former director of the company or an associated company. A "relevant loss" means any loss or liability incurred in connection with that director's duties or powers in relation to the company, any associated company, or any pension fund or employees' share scheme.